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PREFERENTIAL HIRING AND COMPENSATION

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PREFERENTIAL HIRING AND COMPENSATION

> If a man shall steal an ox, or a sheep, and kill it, or sell it; he shall restore five oxen for an ox, and four sheep for a sheep.
> **Exodus 22**

Persons have rights; but sometimes a right may justifiably be overridden. Can we concede to all job applicants a right to equal consideration, and yet support a policy of preferentially hiring female over white male applicants?

Judith Thomson, in her article "Preferential Hiring,"[1] appeals to the principle of compensation as a ground which justifies us in sometimes overriding a person's rights. She applies this principle to a case of preferential hiring of a woman in order to defend the claim that such preferential hiring is not unjust. Her defense rests upon the contention that a debt of compensation is owed to women, and that the existence of this debt provides us with a justification of preferential hiring of women in certain cases even though this involves setting aside or overriding certain rights of white male applicants.

Although she is correct in believing that the right to compensation sometimes allows us or requires us to override or limit other rights, I shall argue that Thomson has failed to show that the principle of compensation justifies preferential hiring in the case she constructs. Thus, by implication, I argue that she has failed to show that preferential hiring of women in such cases is not unjust. I proceed by setting out Thomson's argument, by identifying the crucial premise. I then show that Thomson fails to defend the premise, and that, given her statement of the principle of compensation, the premise is implausible.

2. Thomson's Case

Thomson asks us to imagine the following case. Suppose for

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some academic job a white male applicant (WMA) and a female applicant (FA) are under final consideration.[2] Suppose further that we grant that WMA and FA each have a *right to equal consideration* by the university's hiring officer. This means that each has a right to be evaluated for the job solely in terms of his or her possession of job related qualifications. Suppose, finally, that the hiring officer hires FA because she is a woman. How can the hiring officer's choice avoid being unjust?

Since being a woman is, by hypothesis, not a job related qualification in this instance, the hiring officer's act of choosing FA because she is a woman seems to violate WMA's right to equal consideration. The hiring officer's act would not be unjust only if in this situation there is some sufficient moral ground for setting aside or overriding WMA's right.

Consider, Thomson asks us, ". . . those debts which are incurred by one who wrongs another. *It is here that we find what seems to me the most powerful argument for the conclusion that preferential hiring of women is not unjust" (emphasis added).*[3] We are promised that the basis for justly overriding WMA's acknowledged right is to be found in the principle of compensation. But, at this crucial point in her paper, Thomson stops short of setting out the actual derivation of her conclusion from the application of the principle of compensation to her imagined case. The reader is left to construct the various steps in the argument. From remarks Thomson makes in dealing with some objections to preferential hiring, I offer the following as a fair construction of the argument she intends.

Women, as a group, are owed a debt of compensation. Historically women, because they were women, have been subject to extensive and damaging discrimination, socially approved and legally supported. The discriminatory practices have served to limit the opportunities for fulfillment open to women and have disadvantaged them in the competition for many social benefits. Since women have been the victims of injustice, they have a moral right to be compensated for the wrongs done to them.

The compensation is owed by the community. The community as a whole is responsible, since the discriminatory

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practices against women have not been limited to isolated, private actions. These practices have been widespread, and public as well as private. Nowhere does Thomson argue that the case for preferring FA over WMA lies in a debt to FA directly incurred by WMA. In fact, Thomson never makes an effort to show any direct connection between FA and WMA. The moral relationship upon which Thomson's argument must rely exists between women and the community. The sacrifice on WMA's part is exacted from him by the community so it may pay its debt to women. This is a crucial feature of Thomson's case, and creates the need for the next premise: The right to compensation on the part of women justifies the community in overriding WMA's right to equal consideration. This premise is necessary to the argument. If the setting aside of WMA's right is to be justified by appeal to the principle of compensation, and the debt of compensation exists between the community and women, then something like the fourth premise is required to gain the application of the principle of compensation to WMA. This premise grounds the justness of WMA's sacrifice in the community's debt.

In short, Thomson's argument contains the following premises:

1. Women, as a group, are owed a debt of compensation.
2. The compensation is owed to women by the community.
3. The community exacts a sacrifice from WMA (i.e., sets aside his right to equal consideration) in order to pay its debt.[4]
4. The right to compensation on the part of women against the community justifies the community in setting aside WMA's right.

If we assume that the community may legitimately discharge its debt to women by making payments to *individual women*, then from premises 1 — 4 the conclusion may be drawn that WMA's right to equal consideration may be overridden in order to prefer FA, and, hence, that it is not unjust for the hiring officer to choose FA because she is a woman.

I shall not quarrel with premises 1 — 3, nor with the

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assumption that *groups* can be wronged and have rights.[5] My quarrel here is with premise 4. I shall show that Thomson offers no support for 4, and that it does not involve a correct application of the principle of compensation as used by Thomson. I will examine the case for premise 4 in section 4. In the next section I pause to look at Thomson's statement of the principle of compensation.

3. The Principle of Compensation

In the passage quoted earlier, Thomson speaks of those debts incurred by one who wrongs another. These are the debts of compensation. Using Thomson's own language, we may formulate the principle of compensation as the declaration that *he who wrongs another owes the other.*[6] The principle of compensation tells us that, for some person B, B's act of wronging some person A creates a special moral relationship between A and B. The relationship is a species of the relationship of *being indebted to.* In the case of compensation, the indebtedness arises as a result of a wrongdoing, and involves the wrongdoer owing the wronged. To say that B owes something to A is to say that B's liberty of action with respect to what is owed is limited. B is under an obligation to yield to A what he owes him, and A has a right to it.[7] *What* B must yield will be a matter of the kind of wrong he has done A, and the optional means of compensation open to him. Thus, it is clearly the case that debts of compensation are grounds for limiting or overriding rights. But our being owed compensation by someone, though giving us some purchase on his liberty, does not give us carte blanche in limiting his rights. The debt is limited to what makes good our loss (restores our right), and is limited to us, his victims.

It might be that, for some reason, WMA directly owes FA compensation. If so, it would immediately follow that FA has a moral claim against WMA which limits WMA's liberty with respect to what he owes her. Furthermore, the nature of WMA's wrong may be such as to require a form of compensation interfering with the particular right we are focusing on — his right to equal consideration. Suppose the wrong done by WMA involved his depriving FA of fair opportunities for employment. Such a wrong might be the

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basis for requiring WMA, in compensation, to forego his right to equal consideration if he and FA were in direct competition for some job. This case would conform precisely to the model of Thomson's stated principle of compensation.

Thomson makes no effort to show that WMA has interfered with FA's chances at employment, or done her any other harm. She claims that it is "wrongheaded" to dwell upon the question of whether WMA has wronged FA or any other woman.[8] As we have already seen, Thomson maintains that the relevant moral relationship exists between *women* and the *community*. Consequently, the full weight of her argument rests on premise 4, and I now turn to it.

4. Applying the Principle of Compensation to Groups

Thomson asserts that there is a relationship of indebtedness between the community and women. Yet it is the overriding of WMA's right which is purportedly justified by this fact. The sacrifice imposed upon WMA is not due to his directly owing FA. The community owes FA (as a woman), and exacts the sacrifice from WMA in order that *it* may pay its debt. This is supposed to be justified by premise 4.

May the community take *any* act it sees fit in order to pay its debts?[9] This question goes to the heart of Thomson's case: what support is there for her premise 4? What is the connection between the community's liability to women (or FA), and WMA's membership in the community? Can we find in the fact that the community owes something to women a moral justification for overriding WMA's right? In this section I explore two attempts to provide a positive answer to this last question. These are not Thomson's attempts; I consider her own words in the next section.

First, one might attempt to justify the imposition of a sacrifice on WMA by appeal to distributive liability. It might be urged that since the community owes FA, then every member of the community owes FA and thus WMA owes FA. This defense of premise 4 is unconvincing. While it is true that if the community owes FA then its members collectively owe FA, it does not follow that they distributively owe FA. It is not the case that, as a general rule,

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distributive liability holds between organized groups and their members.[10] What reason is there to suppose it does in this case?

Though this attempt to defend premise 4 is unsatisfactory, it is easy to see why it would be very appealing. Even though the indebtedness is established, in the first instance, between the community and FA, if distributive liability obtained we could derive a debt WMA owed to FA, a debt that arose as a result of the application of the principle of compensation to the community. In imposing a sacrifice on WMA, the community would be enforcing *his* (derived) obligation to FA.

Second, imagine a 36 hole, 2 round, golf tournament among FA, WMA, and a third party, sanctioned and governed by a tournament organizing committee. In previous years FA switched to a new model club, which improved her game. Before the match the third player surreptitiously substitutes for FA's clubs a set of the old type. This is discovered after 18 holes have been played. If we suppose that the match cannot be restarted or cancelled, then the committee is faced with the problem of compensating FA for the unfair disadvantage caused her by the substitution. By calculating her score averages over the years, the committee determines that the new clubs have yielded FA an average two-stroke improvement per 18 holes over the old clubs. The committee decides to compensate FA by penalizing the third player by two strokes in the final 18 holes.

But the committee must also penalize WMA two strokes. If FA has been put at a disadvantage by the wrongful substitution, she has been put at a disadvantage with respect to every player in the game. She is in competition with all the players; what the third player's substitution has done is to deprive her of a fair opportunity to defeat all the other players. That opportunity is not restored by penalizing the third player alone. If the committee is to rectify in mid-match the wrong done to FA, it must penalize WMA as well, though WMA had no part in the wrong done to FA.

Now, if it is right for the committee to choose this course of action, then this example seems promising for Thomson's argument. Perhaps in it can be found a basis for defending

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premise 4. This example seems appropriately similar to Thomson's case: in it an organization penalizes WMA to compensate FA, though WMA is innocent of any wrong against FA. If the two situations are sufficiently alike and in the golfing example it is not unjust for the committee to penalize WMA, then by parity of reasoning it would seem that the community is not unjust in setting aside WMA's right.

Are the committee's action and the community's action to be seen in the same light? Does the committee's action involve setting aside any player's rights? The committee constantly monitors the game, and intervenes to balance off losses or gains due to infractions or violations. Unfair gains are nullified by penalties; unfair losses are offset by awards. In the end no player has a complaint because the interventions ensure that the outcome has not been influenced by illegitimate moves or illegal actions. Whatever a player's position at the end of the game, it is solely the result of his own unhindered efforts. In penalizing WMA two strokes (along with the third player), the committee does him no injustice nor overrides any of his rights.

The community, or its government, is responsible for preserving fair employment practices for its members. It can penalize those who engage in unfair discrimination; it can vigorously enforce fair employment rules; and, if FA has suffered under unfair practices, it may consider some form of compensation for FA. However, compensating FA by imposing a burden on WMA, when he is not culpable, is *not* like penalizing WMA in the golf match. The loss imposed by the community upon WMA is not part of a game-like scheme, carefully regulated and continuously monitored by the community, wherein it intervenes continually to offset unfair losses and gains by distributing penalties and advantages, ensuring that over their lifetimes WMA's and FA's chances at employment have been truly equal. WMA's loss may endure; and there is no reason to believe that his employment position at the end of his career reflects only his unhindered effort. If the community exacts a sacrifice from WMA to pay FA, *it merely redistributes losses and gains without balancing them.*

Even though the golfing example looked promising as a

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source of clues for a defense of premise 4, on examination it seems not to offer any support for that premise. Indeed, in seeing how the golfing case is different from the hiring case, we may become even more dubious that Thomson's principle of compensation can justify the community in overriding WMA's right to equal consideration in the absence of his culpability.[11]

5. Thomson's Words

Since Thomson never explicitly expresses premise 4 in her paper, she never directly addresses the problem of its defense. In the one place where she seems to take up the problem raised by premise 4, she says:

> Still, the community does impose a burden upon him (WMA): it is able to make amends for its wrongs only by taking something away from him, something which, after all, we are supposing he has a right to. And why should *he* pay the cost of the community's amends-making?
>
> If there were some appropriate way in which the community could make amends to its . . . women, some way which did not require depriving anyone of anything he has a right to, then that would be the best course of action to take. Or if there were anyway some way in which the costs could be shared by everyone, and not imposed entirely on the young white male applicants, then that would be, if not the best, then anyway better than opting for a policy of preferential hiring. But in fact *the nature of the wrongs done is such as to make jobs the best and most suitable form of compensation (emphasis added).*[12]

How does this provide an answer to our question? Is this passage to be read as suggesting, in support of premise 4, the principle that a group may override the rights of its (nonculpable) members in order to pay the "best" form of compensation?[13] If WMA's right to equal consideration stood in the way of the community's paying best compensation to FA, then this principle would entail premise 4. This principle, however, will not withstand scrutiny.

Consider an example: Suppose that you have stolen a rare

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and elaborately engraved hunting rifle from me. Before you can be made to return it, the gun is destroyed in a fire. By coincidence, however, your brother possesses one of the few other such rifles in existence; perhaps it is the only other model in existence apart from the one you stole from me and which was destroyed. From my point of view, having my gun back, or having one exactly like it, is the best form of compensation I can have from you. No other gun will be a suitable replacement, nor will money serve satisfactorily to compensate me for my loss. I prized the rifle for its rare and unique qualities, not for its monetary value. You can pay me the best form of compensation by giving me your brother's gun. However, this is clearly not a morally justifiable option. I have no moral title to your brother's gun, nor are you (solely in virtue of your debt to me) required or permitted to take your brother's gun to give to me. The gun is not yours to give; and nothing about the fact that you owe me justifies you in taking it.

In this example it is clear that establishing what is the best compensation (best makes up the wrongful loss) does not determine what is the morally appropriate form of compensation. Thus, as a defense of premise 4, telling us that preferential hiring is the best compensation begs the question.

The question of the best form of compensation may properly arise only after we have determined who owes whom, and what are the morally permissible means of payment open to the debtor. The question of the best form of compensation arises, in other words, only after we have settled the moral justifiability of exacting something from someone, and settled the issue of what it is that the debtor has that he can pay.

The case of preferential hiring seems to me more like the case of the stolen rifle than like the case of the golfing match. If WMA has a right to equal consideration, then he, not the community, owns the right. In abridging his right in order to pay FA, the community is paying in stolen coin, just as you would be were you to expropriate your brother's rifle to compensate me. The community is paying with something that does not belong to it. WMA has not been shown by Thomson to owe anybody anything. Nor has Thomson defended or made plausible premise 4, which on its face ill fits

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her own expression of the principle of compensation. If we reject the premise, then Thomson has not shown what she claimed — that it is not unjust to engage in preferential hiring of women. I fully agree with her that it would be appropriate, if not obligatory, for the community to adopt measures of compensation to women.[14] I cannot agree, on the basis of her argument, that it may do so by adopting a policy of preferential hiring.

6. Benefit and Innocence

Thomson seems vaguely to recognize that her case is unconvincing without a demonstration of culpability on the part of WMA. At the end of her paper, after having made her argument without assuming WMA's guilt, she assures us that after all WMA is not so innocent, and it is not unfitting that he should bear the sacrifice required in preferring FA.

> . . . it is not entirely inappropriate that those applicants (like WMA) should pay the cost. No doubt few, if any, have themselves, individually, done any wrongs to . . . women. But they have profited from the wrongs the community did. Many may actually have been direct beneficiaries of policies which excluded or downgraded . . . women — perhaps in school admissions, perhaps in access to financial aid, perhaps elsewhere; and even those who did not directly benefit in this way had, at any rate, the advantage in the competition which comes of confidence in one's full membership, and of one's rights being recognized as a matter of course.[15]

Does this passage make a plausible case for WMA's diminished "innocence," and the appropriateness of imposing the costs of compensation on him? The principle implied in the passage is, "He who benefits from a wrong shall pay for the wrong." Perhaps Thomson confuses this principle with the principle of compensation itself ("He who wrongs another shall pay for the wrong"). At any rate, the principle, "He who benefits from a wrong shall pay for the wrong," is surely suspect as an acceptable moral principle.

Consider the following example. While I am away on

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vacation, my neighbor contracts with a construction company to repave his driveway. He instructs the workers to come to his address, where they will find a note describing the driveway to be repaired. An enemy of my neighbor, aware somehow of this arrangement, substitutes for my neighbor's instructions a note describing *my* driveway. The construction crew, having been paid in advance, shows up on the appointed day while my neighbor is at work, finds the letter, and faithfully following its instructions paves my driveway. In this example my neighbor has been wronged and damaged. He is out a sum of money, and his driveway is unimproved. I benefited from the wrong, for my driveway is considerably improved. Yet, am I morally required to compensate my neighbor for the wrong done him? Is it appropriate that the costs of compensating my neighbor fall on me? I cannot see why. My paying the neighbor the cost he incurred in hiring the construction company would be an act of supererogation on my part, not a discharge of an obligation to him. If I could afford it, it would be a decent thing to do; but it is not something I *owe* my neighbor. I am not less than innocent in this affair because I benefited from my neighbor's misfortune; and no one is justified in exacting compensation from me.

The very obvious feature of the situation just described which bears on the fittingness of compensation is the fact of *involuntariness*. Indeed I benefited from the wrong done my neighbor, but the benefit was involuntary and undesired. If I knowingly and voluntarily benefit from wrongs done to others, though I do not commit the wrongs myself, then perhaps it is true to say that I am less than innocent of these wrongs, and perhaps it is morally fitting that I bear some of the costs of compensation. But it is not like this with involuntary benefits.

Though young white males like WMA have undeniably benefited in many ways from the sexist social arrangements under which they were reared, to a large extent, if not entirely, these benefits are involuntary. From an early age the male's training and education inculcate in him the attitudes and dispositions, the knowledge and skills, which give him an advantage over women in later life. Such benefits are unavoidable (by him) and ineradicable. Most espe-

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cially is this true of "that advantage . . . which comes of confidence in one's full membership [in the community] and of one's rights being recognized as a matter of course."

The principle, "He who *willingly* benefits from wrong must pay for the wrong," may have merit as a moral principle. To show a person's uncoerced and knowledgeable complicity in wrongdoing is to show him less than innocent, even if his role amounts to no more than ready acceptance of the fruits of wrong. Thomson makes no effort to show such complicity on WMA's part. The principle that she relies upon, "He who benefits from a wrong must pay for the wrong," is without merit. So, too, is her belief that "it is not entirely inappropriate" that WMA (and those like him) should bear the burden of a program of compensation to women. What Thomson ignores is the moral implication of the fact that the benefits of sexism received by WMA may be involuntary and unavoidable. This implication cannot be blinked, and it ruins Thomson's final pitch to gain our approval of a program which violates the rights of some persons.[16]

NOTES

1. Judith Thomson, "Preferential Hiring," *Philosophy and Public Affairs*, 2 (Summer 1973): 364–84.
2. Thomson asks us to imagine two such applicants *tied* in their qualifications. Presumably, preferring a less qualified teacher would violate students' rights to the best available instruction. If the applicants are equally qualified, then the students' rights are satisfied whichever one is picked. In cases where third party rights are not involved, there would seem to be no need to include the tie stipulation, for if the principle of compensation is strong enough to justify preferring a woman over a man, it is strong enough whether the woman is equally qualified or not, so long as she is minimally qualified. (Imagine hiring a librarian instead of a teacher.) Thus, I leave out the requirement that the applicants be tied in their qualifications. Nothing in my argument turns on whether the applicants are equally qualified. The reader

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may, if he wishes, mentally reinstate this feature of Thomson's example.

3. Thomson, 380.
4. The comments from which propositions 1—3 are distilled occur on pages 381–82.
5. For a discussion of these issues, see Robert Simon, "Preferential Hiring: A Reply to Judith Jarvis Thomson," *Philosophy and Public Affairs*, 3 (Spring 1974): 312–20.
6. There are broader notions of compensation, where it means making up for any deficiency or distortion, and where it means recompense for work. Neither of these notions plays a role in Thomson's argument.
7. On page 378, Thomson says: "Now it is, I think, widely believed that we may, without injustice, refuse to grant a man what he has a right to only if *either* someone else has a conflicting and more stringent right, *or* there is some very great benefit to be obtained by doing so — perhaps that a disaster of some kind is thereby averted . . . But in fact there are other ways in which a right may be overridden." The "other way" which Thomson mentions derives from the force of debts. A debt consists of rights and obligations, and the force of debts can perhaps be accounted for in terms of superior rights. Then, debts would not be a third ground, independent of the first listed by Thomson, for overriding a right.
8. Thomson, 380–81.
9. The U.S. Government owes Japanese companies compensation for losses they incurred when the President imposed an illegal import surtax. May the Government justly discharge its debt by taxing only Japanese-Americans in order to pay the Japanese companies?
10. See Joel Feinberg, "Collective Responsibility," *Journal of Philosophy*, 65 (7 November 1968); and Virginia Held, "Can a Random Collection of Individuals Be Morally Responsible?" *Journal of Philosophy*, 67 (13 July 1970).
11. George Sher, in "Justifying Reverse Discrimination in Employment," *Philosophy and Public Affairs*, 4 (Winter 1975), defends reverse discriminations to "neutralize competitive disadvantages caused by past privations" (165). He seems to view the matter along the lines of my

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golfing example. Thus, my comments here against the sufficiency of that model apply to Sher's argument. Also, see below, section 6, for arguments that bear on Sher's contention that the justification for discriminating against white male applicants is not that they are most responsible for injustice, but benefit the most from it.

12. Thomson, 383.
13. In the passage quoted, Thomson is attempting to morally justify the community's imposing a sacrifice on WMA. Thus, her reference to "best" compensation cannot be construed to mean "morally best," since morally best means morally justified. By best compensation Thomson means that compensation which will best make up the loss suffered by the victim. This is how I understand the idea of best compensation in the succeeding example and argument.
14. And there are many possible modes of compensation open to the community which are free from any moral taint. At the worst, monetary compensation is always an alternative. This may be second- or third-best compensation for the wrongs done, but when the best is not available, second-best has to do. For the loss of my gun, I am going to have to accept cash from you (assuming you have it), and use it to buy a less satisfactory substitute.
15. Thomson, 383–84.
16. But, if FA is *not* given preferential treatment in hiring (the best compensation), are *her* rights violated? In having a right to compensation, FA does not have a right to anything at all that will compensate her. She has a right to the best of the morally available options open to her debtor. Only if the community refuses to pay her this is her right violated. We have seen no reason to believe that setting aside the right of white male applicants to equal consideration is an option morally available to the community.

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